

TECHNOLOGY

A class-action suit wants a company scanning and selling Californians' license plate data to pay up

Trial is scheduled for May in a case affecting millions of California drivers. The company says it did nothing wrong.

By **Stephen Council**, *Tech Reporter*

Feb 24, 2024



Afternoon traffic is seen on Interstate 80 in Oakland, Calif., on Aug. 4, 2023. Well-known privacy lawyers are taking on license plate scanning in California.

Jane Tyska/Digital First Media/East Bay Times via Getty Images



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A class-action suit wants a company scanning and selling Californians' license plate data to pay up

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If you drive a car in California, you may be in for a payday thanks to a lawsuit alleging privacy violations by a Texas company.

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The 2021 lawsuit, given class-action status in September, alleges that Digital Recognition Network is breaking a California law meant to regulate the use of automatic

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What's particularly notable about the case is the size of the class. The court has established that if you're a California resident whose license plate data was collected by DRN at least 15 times since June 2017, you're a class member. The plaintiff's legal team estimates that the tally includes about 23 million people, alleging that DRN cameras were mounted to cars on public roads. The case website lets Californians check whether their plates were scanned.

Barring a settlement or delay, the trial to decide whether DRN must pay a penalty to those class members will begin on May 17 in San Diego County Superior Court. The case hinges on a law that went into effect in California in 2016, setting up a \$2,500 minimum payment for those who successfully sue violators. It mandates that the collection and dissemination of automated license plate scan data be "consistent with respect for

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surveillance program.” Edelson frequently takes on technology companies over privacy issues.

“DRN is capturing a pretty detailed picture of people’s lives,” Wade-Scott said. “That could be capturing you at home, at work, at your school, your house of worship, at your doctor. And we’ll argue to a jury that that does not respect Californians’ civil liberties, or their privacy, and that they’re harmed by DRN’s violations of the statute.”

DRN denies the allegation that it broke the California law. The case’s website, a court-ordered neutral ground for potential class members to read about the litigation, reads, “DRN maintains that neither Plaintiff nor any similarly situated person has suffered any harm.”

“DRN also maintains that the ALPR statute,” the website says, referring to the relevant California law, “does not prohibit the collection or storage of ALPR information and that its ALPR system is secure and has never been breached.”

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The company readily advertises the fact that it scans plates. On its website, DRN even calls itself “the leading expert in license plate recognition technology and analytics.” The company’s cameras scan 220 million plates a month, the website says, and customers can use plate data to “create comprehensive vehicle stories.”

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The plaintiff's lawyers will try to convince the jury during May's trial that DRN's scans invaded Californians' privacy and that itself is a type of harm, Wade-Scott said. DRN's attorneys for the case did not immediately respond to SFGATE's requests for comment.

Hear of anything happening at a California tech company? Contact tech reporter Stephen Council securely at stephen.council@sfgate.com or on Signal at 628-204-5452.

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Feb 24, 2024



Stephen Council

TECH REPORTER



Stephen Council was the tech reporter at SFGATE from January 2023 until March 2026. He had previously covered technology and business for the Information, the Wall Street Journal, CNBC and CalMatters. His reporting won awards from the San Francisco Press Club in 2021 and the Society of Professional Journalists, Northern California in 2025.

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